

25SMCV00592 25SMCV00592

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This is an interesting motion. Plaintiff sued defendant claiming injuries. Defendant demanded that plaintiff submit to a medical examination. Plaintiff agreed and, pursuant to CCP section 2032.610, demanded a detailed report as to the findings of the examination. That was provided (although there was some motion practice about the level of detail). Plaintiff now wants to depose the expert conducting the examination, Dr. Sadun. Plaintiff served a deposition notice to which defendant objected claiming that at present, Dr. Sadun is an expert and can be deposed only under the expert discovery statutes. In other words, defendant agrees that Dr. Sadun can be deposed eventually and that there is no work product protection that can be asserted as to the examination, but not yet. Plaintiff argues that Dr. Sadun is now a percipient witness to the extent of the examination and can be deposed just like any other percipient witness. It is an interesting question, and the court has found no case directly on point. Both sides refer to Kennedy v. Lucky Stores (1998) 64 Cal.App.4th 674, but it does not really answer the question. There, the plaintiff had submitted to an examination and the examiner had been designated as an expert. However, before the expert was deposed, the defense withdrew the designation and re-designated the expert as a consulting expert. When plaintiff sought to depose the expert, the defense objected. The Court of Appeal allowed the deposition to go forward. Even though there is no general right to depose a consulting expert, the court found that section 2032.610 contemplated that a deposition be allowed to take place and that the normal protections afforded to a consulting expert would not pertain.

The court tends to think that plaintiff has the right of it

in terms of entitlement to depose Dr. Sadun.

It could well be that defendant never intends to designate Dr. Sadun as an expert at all. If that is the case,

then there is no right under the expert discovery statutes to depose Dr. Sadun at all either, but under Kennedy there is plainly a right to depose Dr.

Sadun even so. As the Kennedy court

found, it is section 2032.610 that provides for that right. Moreover, defendant's reading leads to a problem. There is no work product protection generally

with regard to a testifying expert.

Accordingly, if section 2032.610 were meant to apply only in the expert

discovery phase, in most cases the work product language would mean nothing anyway. On balance, the court believes

that Dr. Sadun can be deposed and that plaintiff need not wait for the expert discovery phase to do so. But that is

not quite the end of it. There is the

tactical oddity of plaintiff potentially getting two depositions of this person:

one now, and one during expert discovery.

That might not be a real problem; plaintiff states that counsel "does

not seek to depose Dr. Sadun as an expert witness." But that is ambiguous. It could mean that plaintiff is foregoing the

opportunity to take another deposition of Dr. Sadun even if Dr. Sadun is later designated as an expert. But it could also

mean that counsel does not intend to ask those sorts of questions at this

deposition but reserves the right to do so later. If the former, well and good; the court would be inclined to grant the motion. But if

the latter, the court is not sure.

Depositions are an imposition (not to mention expensive), and it seems

tactically unfair to give plaintiff essentially two cracks at this person. The court will inquire.

The bottom line is that the court believes that the statute

does not force plaintiff to wait for the expert designation to depose Dr.

Sadun. But the court also believes that

(like any human witness), there should be one deposition of Dr. Sadun, not two. Because the issue seems to the

court to be novel, the request for sanctions is DENIED.

The court notes that this would be an interesting question

for appellate court resolution. The

court would not take it amiss were either party to seek writ review of this question. (Not that the court would ever

take it amiss; it is just that this question might be more writworthy than

others.) The court notes that the trial
is not until about a year from now.